

Anti-Discrimination, Equity and Equal Opportunity Policy

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Applicable to Azim Premji University, Bengaluru Campus

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1. Introduction:

Azim Premji University is committed to fostering an inclusive and equitable educational environment. Furthermore, upholding the values and the spirit of the Indian constitution are central to the University's educational goals and practices. In this context, the University recognizes that any form of discrimination based on gender, disability, caste, ethnicity, religion, or any other marginalised socio-economic backgrounds goes against the values of the University, the Azim Premji Foundation and the Constitution of India. Discriminatory acts create an inequitable environment for those employed by the University (members) or enrolled in the University's educational programmes (students).

The University has formulated this Anti-Discrimination, Equity and Equal Opportunity Policy in compliance with the Constitution of India and various legal safeguards put in place to protect the dignity of and provide equal opportunities to those belonging to marginalised groups. The University has also constituted the **Anti-Discrimination, Equity and Equal Opportunity Centre (ADEEOC)** that will ensure the implementation of the policy (Section 2).

The Policy is enacted to uphold the spirit of the following laws/regulations and guidelines:

1. Scheduled Caste and Schedule Tribe (Prevention of Atrocities) Act, 1989
2. The Rights of Persons with Disabilities Act, 2016
3. Transgender Persons (Protection of Rights) Act, 2019
4. The University Grants Commission (Promotion of Equity in Higher Educational Institutions) Regulations, 2012.
5. Guidelines to Provide Equitable Opportunity for the Socio-Economically Disadvantaged Groups (SEDGs) in the HEIs, 2024

2. Scope and Applicability

1. The University **prohibits discrimination** at the work/learning place. In case discrimination occurs, the University will act to stop such behaviour, prevent its recurrence, and take appropriate action against those responsible.
2. Discrimination refers to unfair, biased, prejudiced and/or humiliating treatment of an individual due to their social background or identity such as gender, caste, disability, religion, ethnicity and any other socio-economic background. A list of such behaviours are provided in the **Annexure** to this document.
3. Discrimination can occur as a result of both *explicit* and *implicit* biases (see **Annexure** for definition of both).
4. The Policy and Guidelines apply to acts of discrimination carried out by:
 - a. any member (full time or part time employees) against a student,
 - b. any student against a member or another student.
5. For the purpose of this policy, definition of members include all persons employed by the University, and also consultants, part-time, temporary, contractual employees.
6. The Policy applies to instances of discrimination occurring between aforementioned members and students at the following locations:
 - a. On the premises of the University, and
 - b. at the extended workplace, e.g. during field practice and work-related events.
7. Out of scope:
 - a. Member on member discrimination cases do not fall under the scope of this policy and such complaints will be taken up by People Function (human resources) of the University.
 - b. Third party discrimination cases (that is, those not involving university members or students) do not fall under the scope of this policy. However, the **ADEEOC** can assist university members and students to file a complaint against the aggrieved party under existing the anti-discrimination laws of India.
 - c. The **ADEEOC** shall not entertain complaints of a general nature, without mentioning specific incidents, and/or involving specific individuals, shall not be entertained.
 - d. Design of programs, curricula, courses and pedagogy are outside the purview of **ADEEOC** and will be referred to the appropriate university academic bodies.

3. Mandate of the Anti-Discrimination, Equity and Equal Opportunity Centre (ADEEOC)

The mandate of the **ADEEOC** is as follows. The University will review these guidelines periodically and communicate any changes.

The **ADEEOC** will:

1. Create awareness and sensitize students, faculty, staff, and other stakeholders on the importance of following anti-discrimination, equal opportunity and equitable practices to the University's work.
2. Investigate and redress grievances related to any instances of discrimination occurring on campus. Other student grievances not related to discrimination will be addressed by the Student Grievance Redressal Committee (SGRC).

3. Collect data related to anti-discrimination policies and practices and report to competent internal and external authorities.

4. Composition and Responsibilities of the ADEEOC

A. Composition of the ADEEOC

The **ADEEOC** will be composed of the following members:

1. Convenor
2. Three members drawn from teaching and/or non-teaching roles
3. Member Secretary (selected from among the above three members)

The **ADEEOC** shall report to the Registrar and Vice Chancellor of the University.

The **ADEEOC** shall be reconstituted every two years. Members will be confirmed or changed, as appropriate.

B. Responsibilities of the ADEEOC:

The **ADEEOC** will:

- a. spread awareness about the Policy within University members on a regular basis by conducting sensitization workshops for all members.
- b. hold orientation sessions for all incoming students and new members joining the university.
- c. conduct refresher modules on anti-discrimination policies and awareness, as needed
- d. receive complaints of discrimination and conduct inquiries on such complaints in the manner prescribed in this Policy.
- e. assist victims of discrimination and eyewitnesses through the process of inquiry.
- f. recommend necessary action to protect victims/eyewitnesses against any instances of retaliation or threats of retaliation.
- g. ensure that all discussions as part of inquiries are kept confidential, and only those details which are necessary for taking action and/or appeal, are released to relevant authorities, such as the Vice Chancellor, Registrar, Registrar's Office, School Directors, Associate Directors, Function Heads or other relevant authorities
- h. collaborate with PoSH and DC as and when necessary.
- i. Collect data related to anti-discrimination cases, events and practices and report to competent internal and external authorities

5. Grievance Redressal Processes

A. Complaints:

1. Any person to whom this policy is applicable may submit a complaint by email to adc.blr@apu.edu.in or directly in writing to any of the **ADEEOC** members. As mentioned above, general complaints which do not mention specific incidents or individuals will not be entertained.
2. The complaint must be registered within a period of 90 days from the date of the incident or, in the case of a series of incidents, within a period of 90 days from the date of the last incident. The complaint must involve incidents which directly affect the complainant; complaints from unaffected parties, or general complaints, will not be accepted.
3. After registering a complaint, the complainant will be required to (a) submit a detailed written record of the date, time and nature of the incident/(s); (b) the names of the person against whom the complaint is being registered; (c) names of witnesses, if any; (d) any document or other

evidence the complainant may wish to submit in support of the complaint, (e) The nature of impact of the aforementioned incident on the complainant's work/ studies.

4. Any person may approach the members of the **ADEEOC** to clarify whether or not a particular act is discriminatory without registering a formal complaint.
5. An eyewitness to any conduct amounting to or implying discrimination may report the incident in the manner prescribed under this Policy. However, the affected party must agree to take forward the complaint, otherwise, the **ADEEOC** will not consider it a formal complaint.
6. Anonymous complaints will not be accepted.
7. In the event of a mala fide or intentionally false complaint, appropriate action may be taken against the complainant. This Clause shall be applied cautiously and shall not be interpreted so as to deter or penalise bona fide complaints or statements made in good faith but not ultimately substantiated.

B. Assessment and inquiry:

1. After a complaint is received, the **ADEEOC** will first assess the nature and context of the complaint to determine whether the alleged incident falls under discrimination based on implicit bias or explicit bias as defined in the annexure of the document.
2. If a complaint is found to be a case of implicit discrimination, the **ADEEOC** will initiate a structured awareness building on anti-discrimination for the individual(s) involved.
3. If a complaint is found to relate to explicit discrimination, the **ADEEOC** will either proceed with a process of conciliation or an inquiry. Strict action will be taken in line with 'zero-tolerance' policy if found guilty. The penalty clauses f and/or g in addition to clauses 'a to e' will apply. (refer to Section C below)
4. Conciliation: If the complainant seeks conciliation, **ADEEOC** will attempt to settle the matter between the complainant and the respondent through conciliation prior to initiating an inquiry. If this is successful, the **ADEEOC** will forward the conciliation arrived at to the Registrar for implementation.
5. If the complainant reports to the **ADEEOC** that the terms and conditions of the conciliation arrived at have not been complied with by the respondent, an inquiry will be instituted. Such a report must be submitted within 90-day of completion of conciliation process.
6. Inquiries will be based on the following principles:
 - a. **ADEEOC** will provide an opportunity to both parties to be heard and record all relevant information.
 - b. **ADEEOC** will collect and weight evidence regarding the allegations from both parties as well as relevant witnesses. It may call witnesses and record their statements, if needed.
 - c. Inquiry must be completed within 90 days of receipt of the complaint, unless due to unavoidable circumstances the complainant, the respondent, or some witnesses are not available (e.g., due to absence from campus due to field practice components, etc.).
7. Actions pending Inquiry: During the pendency of an inquiry the **ADEEOC** shall have the discretion to make appropriate interim recommendations:
 - a. Transfer the complainant or respondent to any other class/section in case of students or other team in case of members.
 - b. Grant such other relief to the complainant as may be necessary.
 - c. Recommend counselling and mental health support.
8. If required, **ADEEOC** may consult with the Prevention of Sexual Harassment (PoSH) Committee and Disciplinary Committee (DC) and other relevant authorities before reaching a decision.
9. Retaliation: Any retaliation or threat of retaliation by either of the parties concerned is strictly forbidden, and disciplinary action will be initiated against the offending party.
10. Confidentiality: The identity of the complainant, respondent, witnesses, statements, and other evidence obtained during the inquiry process, recommendations of the **ADEEOC**, or action taken by the University are considered confidential. Information will be shared with the actioning authorities

for actioning recommendations of the **ADEEOC**. Information collected during complaints and inquiries will not be disclosed by any member or discussed publicly or shared on any media. The complainant, respondent, witnesses, **ADEEOC** members, and person/s who act on the recommendation are bound by this obligation. Any breach of confidentiality is subject to penalties, including but not limited to those mentioned under the section on 'Penalties', and may involve disciplinary action.

11. Completion of Inquiry: The **ADEEOC** on completion of an inquiry shall provide a report of its findings within 10 days from the date of completion of the inquiry to the Registrar. Necessary action based on the report must be taken within 60 days of receipt of the report.

C. Penalties and Action

1. Depending on the gravity of the situation and offence, the **ADEEOC** may recommend to the Registrar one or more of the following illustrative penalties on any individual/s found guilty on the charges of discrimination.
 - a. Written apology.
 - b. Warning or reprimand.
 - c. Counselling
 - d. Completing a structured remedial module on anti-discrimination.
 - e. Transfer to another section/ class/ team (with or without a change in role).
 - f. Withdrawal of residential facilities/ academic honours (in case of students).
 - g. Suspension/Dismissal/ Rustication/Expulsion.
 - h. If an alleged instance amounts to a cognizable offence under the Indian Penal Code or any other applicable law, the University may, in addition to imposing one or more of the above penalties, initiate appropriate proceedings according to law. For example, if the **ADEEOC** finds that the nature of the reported discrimination violates the Scheduled Caste and Scheduled Tribe (Prevention of Atrocities) Act, 1989, it may support the complainant to file a case with the police.
 - i. Cases of explicit discrimination will be dealt with a **zero-tolerance** approach involving one or more penalties listed above.
2. The **ADEEOC** has no jurisdiction to take action against non-members/non-students of the University. However,
 - a. the **ADEEOC** may support the aggrieved party, who is a University member/student, to initiate action, if they wish to, under the applicable laws of India, before the appropriate legal forums.
 - b. in the case of a visitor to the University engaging in discriminatory behaviour, the **ADEEOC** can consider demanding an apology for the act of discrimination and/or restricting further entry into the University.
 - c. in case the visitor is a participant in an event held on University premises, disqualification of participation in such event, etc.
3. After a preliminary internal investigation, if **ADEEOC** concludes that further police investigation and action are required, a case may be reported to the police with the approval of the complainant.

D. Appeal

If any of the parties to the complaint is/are dissatisfied with actions taken for resolution of a complaint, they can file a written appeal with the Ombudsperson, within 30 calendar days of the communication of the decision to the parties. The Ombudsperson will review the details of the case and determine whether any change in decision is warranted. The decision of the Ombudsperson will be final.

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5. ANNEXURES

Annexure A

The Azim Premji University has its processes to use the socio-economic disadvantage index in order to provide equitable financial and admissions support. The UGC guidelines 2024 identify certain groups as socio-economically disadvantaged; from that list, the University acknowledges specific kinds of disadvantages and groups that need equitable opportunities in higher education.

1. Gender Identity:

- Female (Girls and Women make up about half of all SEDGs and, in particular, those belonging to underrepresented groups have multiple disadvantages)
- Transgender

2. Social Backwardness Identity:

- Scheduled Castes (SCs)
- Scheduled Tribes (STs)

3. Educational and Economic Backward Identity:

- Non-Creamy Layer among Other Backward Classes (OBCs)
- Economically Weaker Sections (EWSs)
- Students from the vernacular medium schools
- First Generation Learners

4. Minority Identity:

- Religious Minorities
- Linguistic Minorities

5. Persons with Disabilities:

- A person with long-term physical, mental, intellectual, or sensory impairment,
- A person with not less than forty percent of a specified disability as certified by the certifying authority.

6. Vulnerable and Low Socio-economic conditions:

- Migrant communities, Denotified and Nomadic Tribes
- Low-income households Below Poverty Line (BPL)
- Children in vulnerable situations such as without known parents
- Any other group of low socio-economic conditions

7. Less-developed, poor-access, and disadvantaged locations:

- Villages and towns
- Tribal Areas /Scheduled Areas as mentioned in the V and VI Schedule under the Constitution of India
- Slums
- Aspirational Areas with Special Educational Zones (SEZs)

- North East States
- Islands
- Conflict Prone Areas
- Disaster-prone areas, including flood, drought, earthquake, etc.
- Border Areas

Annexure B

1. Discriminatory acts may include one or more (but not limited to) the following:
 - a. Derogatory or demeaning comments about people's social background, particularly of those coming from marginalised groups in India.
 - b. Derogatory or demeaning comments about people's bodies/clothes/accent/language proficiency/other identity markers.
 - c. Graffiti, cartoons, jokes, and songs meant as an insult to marginalised social groups.
 - d. Verbal abuse or comments that put people down because of their social background.
 - e. Hate speech, specifically against marginalised communities. (See point 3 below)
 - f. Implied or explicit promise/threat of preferential/detrimental treatment based on social background
 - g. Excluding individuals from certain activities based on their social background
 - h. Creating an intimidating, humiliating or offensive, or hostile work/learning environment due to a person's social background.
2. Discrimination can be based on (a) implicit bias and (b) explicit bias.
 - a. Explicit Bias: Explicit bias refers to cases where individuals are aware of the social, economic or any other kind of prejudice, exclusion or marginalization experienced by societal attitudes toward certain social groups, and their actions directly or intentionally contribute to or adhere to those prejudices, exclusions, or marginalizations.
 - b. Implicit Bias: Implicit bias involves perceptions, attitudes, and stereotypes that develop in a person due to social conditioning, vis-a-vis ignorance/unawareness that is typically associated with social privilege. Unlike explicit bias, individuals acting on implicit bias may not actually have a hostile attitude towards a specific social group and yet end up acting in a way that amounts to discrimination.
3. Definition of Hate Speech: This policy adopts the U.N. definition of hate speech, which is offensive discourse targeting a group or an individual based on inherent characteristics (such as race, religion, or gender) and that may threaten social peace.

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